

23STCV30364 23STCV30364

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 23STCV30364 Hearing Date: August 3, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 3, 2026

CASE NUMBER

23STCV30364

MOTION

Motion to Compel Deposition

MOVING PARTIES

Defendants Abbott Laboratories, St. Jude Medical S.C.,
Inc., and Tony Li

OPPOSING PARTY

Plaintiff Angela Standlee

MOTIONS

Defendants

Abbott Laboratories, St. Jude Medical S.C., Inc., and Tony Li ("Defendants") move to compel Plaintiff Angela Standlee ("Plaintiff") to appear and testify at her continued deposition. Plaintiff opposes the motion.

ANALYSIS

Pursuant to Code

of Civil Procedure section 2025.450, if a party to the action fails to appear for deposition after service of a deposition notice and the party has not served a valid objection to that deposition notice, the party which noticed the deposition may move for an order to compel the deponent to attend and testify at deposition. (Code Civ. Proc., §2025.450, subd. (a).)

In its October 1, 2025 order, the Court entered the parties' stipulation to stay this action pending mediation. The stipulation provides this action is stayed "in its entirety," and the parties would submit a joint status report to the Court after mediation for the Court to determine "whether [to] lift the stay." (Joint Stipulation to Stay Proceedings Pending Completion of Scheduled Mediation.) At the time Defendants filed this motion, the Court had not yet determined whether to lift the stay in this matter. As such, Plaintiff had no obligation to appear for deposition, and Defendants should not have filed this motion.

Accordingly, the motion is denied as in violation of the stay of this matter. Defendants may re-notice the motion for hearing, if the parties are unable to resolve the dispute regarding Plaintiff's deposition.

Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.